

To,
Kiran Aher
Sitai Nivas, Matane,
Deola, Matane, Nashik,
Maharashtra 423102

Dear Kiran,

Re: Offer Letter for the post of Executive Front-end Developer

Following our discussions, I am pleased to offer you, on behalf of Decimal Point Analytics Private Limited, a position as **"Executive Front-end Developer"**.

Your fixed cost to company would be **Rs.2,40,000/- per annum**. This includes gratuity as per rules.

Night Shift Allowance will be as per policy.

We look forward to your joining us on or before **4th December 2023**. By accepting this letter, you agree to bind yourself to the terms of the employment, including notice period as decided by the company.

I would like to reiterate our high regard for you, and in the interim, if I can be of help, please do not hesitate to call me.

Sincerely,



Shailesh Dhuri
Chief Executive Officer

I accept this letter & agree to abide by the terms of employment of the company.

Encl:

- 
- a. Terms & Conditions
 - b. Acceptance Copy

STATEMENT OF TERMS OF EMPLOYMENT

BETWEEN

DECIMAL POINT ANALYTICS PRIVATE LIMITED

AND

KIRAN AHER

STATEMENT OF TERMS OF EMPLOYMENT

This Statement includes the particulars of employment and is made between the following parties:

Decimal Point Analytics Private Limited and

Kiran Aher,

The terms and conditions of your employment with Decimal Point Analytics Private Limited are set out below.

The Company reserves the right to vary and amend the terms and conditions of employment from time to time and will give reasonable notice of any such change.

In this Agreement, the following words shall have the following meanings: -

“Associated Company” shall mean in relation to the Company, another company which is connected or under common ownership of the Company or the principal shareholders of the Company.

“The Board” shall mean the Executive Board of Directors from time to time of the Company including any committee of the Board duly constituted by it.

“Gross Misconduct” shall include but is not limited to discrimination, harassment, fighting, alcohol or drug abuse, fraud, competing with the Company, theft, destruction of Company property, any breach of the Company’s e-mail/Internet policy, serious breaches of health and safety rules and breach of a statute which has a direct effect on your ability to undertake your duties under this Agreement.

“Incapacity” shall mean any illness, accident or other like cause which prevents you from performing your duties hereunder.

1. JOB TITLE AND REPORTING LINE

Your job title is **Executive Front-end Developer** of Decimal Point Analytics Private Limited and your reporting director would be **Pareesh Sharma - Managing Partner**. Based on your performance and Company requirements, your designation, and reporting line may be reviewed by the Company.

You have a duty to carry out all reasonable instructions and comply with all policies and procedures that the Company imposes. The Company may also reasonably require you to work at other jobs, or undertake the duties of another position, at a similar level within the business (whether for the Company and/or for an Associated or Subsidiary Company), after proper consultation.

PROBATION AND CONFIRMATION

Confirmation of your employment with the Company would be effective upon your satisfactory completion of the first 6 months of employment (also called as Probation / Training period) with the Company. This stipulated period should be sufficient for you to get trained and start delivering the desired standards of work based upon the goals and objectives agreed to with your manager.

2. DATE OF START OF EMPLOYMENT

Your employment with Decimal Point Analytics Private Limited will begin on or before **4th December 2023**. No employment with a previous employer will count as part of your period of continuous employment with the Company.

3. PLACE OF WORK

Your initial place of work will be 7th floor, Roongta Supremus, Shri Hari Narayan Kute Marg, Tidke Colony, Nashik, Maharashtra 422002, The Company reserves the right to require you to change your place of work to any of the Company's office locations, its client's offices or any other location worldwide, as may be required by the Company. In the event of any proposed relocation, the Company will consult with you and provide you with as much notice as practical.

It is a condition of your employment that you are prepared to relocate anywhere within India and, if necessary, overseas at the request of the Company. Any such relocation shall be as per policy laid down by Company.

4. WORK RELATED TRAVEL

The Company has offices in multiple locations in India and abroad. In addition, the Company has clients all over the world. You may be required to work at any of these locations or elsewhere, for short term or long-term durations, from time to time.

It is a condition of your employment that you are prepared to travel within India and, if necessary, overseas at the reasonable request of the Company. You shall travel by such means and in accordance with such travel tariff as the Company may from time to time determine. The Company will meet properly substantiated expenses in accordance with Company policy.

5. HOURS OF WORK

Work Timings in Decimal Point Analytics reflect the requirements of business.

The working hours expected of each Decimal Point employee is of 9 (nine) hours a working day and 45 hours per week, including a 30-minute lunch/dinner break and 2 rest breaks of 15 minutes each.

Due to the nature of business at Decimal Point, hours of work may vary and you are expected to work such additional hours as necessary to meet business requirements and fulfill the duties and responsibilities of your role. No overtime payments would be made for such additional hours of work.

6. DUTIES

During the course of your employment, you will discharge your duties efficiently, diligently and to the best of your abilities. You shall devote your whole time and attention to the business interests of the Company and generally carry out duties and work as assigned to you and shall obey and comply with all the lawful orders and directions given to you by your superiors. You shall honestly, diligently and faithfully serve the Company and endeavor to promote the business interests of the Company at all times.

7. LEAVES AND HOLIDAYS

During your entire period of service, you will be entitled to leaves, holidays and all other benefits as per the rules and regulations prevailing in the Company for each such benefit from time to time.

8. SALARY

Your fixed cost to company would be **Rs.2,40,000/- per annum**. This includes gratuity as per rules.

Any Bonuses lying unpaid on the date of resignation is subject to forfeiture at the sole discretion of the company.

Our performance year is January 01 to December 31 of each year. Your performance for the year will be reviewed by January 31 of the following year. Based on the review, your fixed annual salary will be reviewed and adjusted (merit increase) in the month of July of the following year. A revision letter will be given to you on 31st January after the completion of the performance review.

9. MONITORING OF E-MAILS, INTERNET, AND TELEPHONE CALLS

There are times when the Company may need to monitor the use of e-mails, the Internet and telephone calls by its employees, for example, to investigate suspected misuse, breaches of the law or Company rules and procedures. By signing this Statement, you consent to the Company so doing, without providing any notice to you.

10. ADDITIONAL AGREEMENTS

You may be required by the Company to sign additional agreements that may be specific to clients or projects; you are required to work for.

11. TERMINATION OF EMPLOYMENT

Your appointment can be terminated by the Company if your Medical Screening or Background Verification check reports have major discrepancies. The management's decision in all such cases will be final and binding.

The minimum period of notice that both you and the Company must give to terminate your employment is **one** month. Notice must be given in writing.

Failure to provide the agreed notice period shall render you liable to pay the Company notice period salary in lieu thereof and shall entitle the Company to deduct / withhold this amount from any and all dues payable by the Company to you. The management may decide to accept salary in lieu of Notice Period or adjust against leave, at its own discretion.

The management may also decide to waive off the Notice Period and relieve you prior to the expiration thereof based on the requirements of the company. The management's decision in all such cases will be final and binding.

It is your responsibility to complete your handover during the notice period before leaving the organization. This is required to ensure smooth transition of processes in the absence of the resigning employee.

Upon leaving the Company, you must return to the Company all of its property that is in your possession including all relevant intellectual property and confidential business information.

Once either you or the Company has given notice to terminate your employment, or if you resign without giving proper notice, the Company may direct you to take "Garden Leave" for the unexpired period of notice. This means that the Company may require you to serve your notice period away from the workplace, to perform only such duties as it may allocate to you or not to

perform any duties, and to have no contact with any employees or clients of the Company without the express written permission of an officer of the Company. In cases where the Company directs you to take "Garden Leave" your salary and all contractual benefits will continue to be paid till the end of your notice period.

Upon termination of your employment for whatever reason, you agree that at the request of the Company you will immediately resign (without claim for compensation) from all directorships and other offices which you may hold in the Company or in any Associated Company and, if applicable, transfer any qualifying or nominee shares held by you, issued to you with respective provisions of terms of issue from time to time, to the Company and/or any Associated Company.

In the event of your failure to notify the Company that you will resign within seven days of a request by the Company, you hereby irrevocably authorise the Company to appoint a person to execute any documents and to do everything necessary to affect such resignation on your behalf. Further, if you fail to transfer such shares within seven days of such request, the Company may affect such transfers on your behalf.

Upon termination of your employment, for any reason other than those mentioned in clause 12.2, all unpaid increments, bonuses, whether retention or performance or any other bonus, revised salary will stand forfeited and no bonus and revisions will be payable to you during the notice period or after termination of employment.

The termination of your employment for whatever reason shall not affect those provisions of this Agreement which are expressed to have effect thereafter.

12. SUMMARY TERMINATION

If you:

- 12.1.1 shall commit any act of dishonesty whether relating to the Company, any Associated Company, an employee or otherwise; or
- 12.1.2 are guilty of any Gross Misconduct or commit any serious breach of any of your obligations to the Company or any Associated Company or refuse or neglect to comply with lawful orders given to you by the Board; or reporting officer
- 12.1.3 are guilty of any conduct which in the reasonable opinion of the Company brings you, the Company, or any Associated Company into disrepute; or
- 12.1.4 shall be prohibited or disqualified by law from holding the office which you hold in the Company or any Associated Company or shall resign from any such office without the prior written consent of the Board; or
- 12.1.5 are in the reasonable opinion of the Company incompetent in the performance of your duties; or
- 12.1.6 fail to observe and perform in all material respects the terms and provisions of this Agreement (where such conduct does not fall within Clause 12.1.3) and fail to remedy any such non-observance or non-performance (where capable of remedy) within fourteen (14) days after prior written notice from the Company requiring you so to do; or
- 12.1.7 are declared bankrupt; or
- 12.1.8 are convicted of any arrestable criminal offence; or

12.1.9 are prevented from performing your duties due to Incapacity (including any illness caused by your own negligence) for a period of 120 working days in aggregate in any period of 12 months: or

12.1.10 fail to observe and comply with the requirements and obligations of any law which is required to be observed in performance of your duties,

THEN the Company shall be entitled at its absolute discretion to terminate your employment immediately without notice or payment in lieu of notice whereupon you shall have no claim against the Company for damages or otherwise by reason only of such termination. Further, it is hereby agreed that the Company shall be entitled to terminate your employment under Clause 12.1.9 notwithstanding that to do so would disentitle you to any benefits in force at the date of such termination.

12.2 This Agreement shall automatically terminate on your 60th birthday.

12.3 The Company may suspend you for the purpose of investigating any misconduct alleged against you and during any such period, you shall not, except with the prior consent in writing of the Board, or your reporting officer, attend at any premises of the Company or any Associated Company or contact any employee, customer or supplier of the Company or any Associated Company. The Company shall be under no obligation to provide any work for you during such period and you shall, at the request of the Company, immediately deliver to the Company all or any of its property.

13. DEDUCTIONS FROM SALARY

The Company reserves the right in its absolute discretion to deduct from your pay any sums which you may owe the Company including, without limitation, any overpayments or loans made to you by the Company or loss suffered by the Company as a result of your negligence or breach of the Company's rules, any TDS dues, any tax dues, any other statutory dues.

14. OUTSIDE INTERESTS

You will not, during the course of your employment, be employed or engaged in any capacity in any other business without the prior written consent of a Director of the Company.

15. CONFIDENTIALITY

You acknowledge that in the course of your employment with the Company you will have access to, and be entrusted with, information in respect of the business and financing of the Company, its Clients, its Clients' clients, its employees, its dealings, transactions and affairs including any parent or subsidiary company, another subsidiary of parent company, joint venture company and associated companies (together "Group companies"), all of which information is or may be confidential.

You must not, either during your employment or at any other time after completion of employment with the Company, divulge to any person or organisation any confidential information relating to the Company, its Clients, its Clients' clients, its employees and any Group company, except where required to do so as part of your duties while employed by the Company.

"Confidential information" includes all information which has been specifically designated as confidential by the Company, its Clients, its Clients' clients, its employees or any parent company, another subsidiary of parent or subsidiary company, joint venture company (hereinafter collectively referred to as Group Company(ies)), any information imparted in

circumstances which imply that it is confidential, and any information relating to the technical, strategic planning, marketing, pricing or financial activities of the Company, its Clients, its Clients' clients, its employees or any Group Company, the unauthorised disclosure of which would embarrass, harm or prejudice the Company or any Group Company. It does not include information which is legitimately in the public domain.

You must not, at any time during your employment with the company and thereafter, share the name of any Client of the Company or Clients client, either directly or indirectly, or in such terms that any third person is able to ascertain the name of the Client or Client's client, in any social networking site such as LinkedIn and Facebook or any job portal or site such as Naukri, Monster and Times Jobs without the express prior written approval of a Director of the Company.

Breach of the Group's confidentiality rules during your employment will normally lead to summary dismissal for gross misconduct or any other legal recourse available to the Company.

16. INTELLECTUAL PROPERTY

All relevant Intellectual Property and all Intellectual Property Rights therein shall to the fullest extent permitted by law belong to, vest in and be the absolute, sole, and unencumbered property of the Company or if it originates mainly from an Associated Company, it shall be the property of such Associated Company, or if it originates mainly from a Client Company, it shall be the property of such Client.

- 16.1 You hereby acknowledge that because of the nature of your duties and the particular responsibilities arising from the nature of your duties you have and at all times during your employment will have a special obligation to further the interests of the undertakings of the Company and of any Associated Company.
- 16.2 You hereby undertake to notify and disclose to the Company in writing the full details of all relevant Intellectual Property forthwith upon the production of the same, and promptly whenever requested by the Company and in any event upon the determination of your employment with the Company deliver up to the Company all correspondence and other documents, papers and records, and all copies, whether physical or electronic, or on any magnetic or optic or any other media thereof in your possession, custody and power relating to any relevant Intellectual Property;
- 16.3 You hereby undertake to hold upon trust for the benefit of the Company or any Associated Company any relevant Intellectual Property and the Intellectual Property Rights therein to the extent the same may not be and until the same are vested absolutely in the Company or any Associated Company.
- 16.4 You hereby assign for the benefits of the Company by way of future assignment all copyright, design rights and other proprietary rights (if any) in all relevant Intellectual Property.
- 16.5 You hereby, unconditionally, and irrevocably waive your rights to be identified as the author of any of the relevant Intellectual Property in which copyright subsists and not to have the work subjected to derogatory treatment; and this waiver is made expressly in favour of the Company and shall extend to licenses and successors in title to the copyright in the work.
- 16.6 You hereby acknowledge that, save as provided by law, no further remuneration or compensation other than that provided for herein is or may become due to you in respect of the performance of your obligations under this Clause; and
- 16.7 You hereby undertake at the expense of the Company to execute all such documents, make such applications, give such assistance and do such acts and things as may in the opinion of

the Company be necessary or desirable to vest in and register or obtain letters patents in the name of the Company, its clients, its clients' clients, its employees or any Associated Company and otherwise to protect and maintain the relevant Intellectual Property and the Intellectual Property Rights therein.

To the extent that by law any relevant Intellectual Property or the Intellectual Property Rights therein do not, or are not permitted to, vest in or belong to the Company or any Associated Company you agree immediately upon the same coming into existence to offer to the Company or any Associated Company in writing a right of first refusal to acquire the same on arm's length terms to be negotiated and agreed between the parties in good faith.

17. POST TERMINATION OBLIGATIONS

17.1 For the purpose of this Clause, the following expressions shall have the following respective meanings:

"Business" means the carrying on of the business of providing financial and investment services and support services to companies in the financial services sector and any other sectors that the Company or any Group Company provides services to, including the sales and marketing of research data produced by the Company or any Group Company and any other business which may at the termination of this Agreement be carried on by the Company or any Group Company at the date of termination of your employment and in which you have been concerned to a material extent at any time in the 24 months immediately preceding such termination.

"Key Employee" means any person who at the date of termination of your employment is employed or engaged by the Company or any Group Company (i) with whom you have had material contact during the course of your employment and (ii) either (a) is employed or engaged in the carrying on of the business of Company's Business and any other business or (b) is in possession of confidential information or (c) is directly managed by or reports to you or (d) in the event that such Key Employee is found to have been solicited by you prior to the date of termination of your employment, who would have been so employed but for your actions.

"Restricted Area" means any part of the world in which you have undertaken your duties to a material extent at any time in the 24 months immediately preceding the termination of your employment.

"Restricted Period" means the period of 36 months and calculated from the date of termination of your employment, subject to a reduction for any period spent on Garden Leave, as mentioned under the Clause "Termination of Employment".

17.2 You hereby undertake that you will not for the Restricted Period without the prior written consent of the Company either alone or jointly with or on behalf of any person directly or indirectly whether as manager, agent, consultant, employee or otherwise:

17.2.1 in connection with the carrying on of any business in competition with the Business, canvass, solicit, approach, or do business, either directly or indirectly, with any person or organization who or which has at any time during the period of 24 months immediately preceding the date of the termination of your employment done business with the Business as a client and with whom or which you have had dealings during the course of your employment; or

17.2.2 solicit or entice away or endeavor to solicit or entice away from the Business any Key Employee who at the date of the termination of your employment is employed or engaged by the Company (whether or not the Key Employee would commit a breach of contract by

accepting such an approach).

18. SHARE DEALINGS

You shall comply with all relevant rules of the Company, regulations and laws in force in relation to share dealings, debentures or other securities.

19. GENERAL

- 19.1 No failure or delay by the Company in exercising any right, power or privilege under this Agreement shall operate as a waiver thereof nor shall any single or partial exercise by the Company of a right, power or privilege preclude any further exercise thereof of the exercise of any other right, power, or privilege.
- 19.2 This Agreement supersedes all other agreements whether written or oral between the Company or any Associated Company and you relating to your employment and you acknowledge and warrant to the Company that you are not entering into this Agreement in reliance on any representation not expressly set out herein.
- 19.3 You warrant that by virtue of entering into this Agreement you will not be in breach of any express or implied terms of any contract with, or of any other obligation to, any third-party binding upon you.
- 19.4 If your employment under this Agreement is terminated by reason of the liquidation of the Company for the purpose of reconstruction or amalgamation and you are offered employment with any concern or undertaking resulting from the reconstruction or amalgamation on terms and conditions not less favorable than the terms of this Agreement, then you shall have no claim against the Company in respect of the termination of your employment under this Agreement.
- 19.5 You confirm that you have received or have had the opportunity to receive independent legal advice as to the terms and effect of this Agreement and to the restrictions contained in the Confidentiality and Intellectual Property and Post-termination Obligation clauses above.

20. NOTICES

- 20.1 Any notice or other communication given or made under this Agreement shall be in writing and shall be delivered to the relevant party or sent by registered post to the address of that party specified in this Agreement or such other address in India may be notified by that party from time to time for this purpose and shall be effectual notwithstanding any change of address not so notified.
- 20.2 Unless the contrary shall be proved each such notice or communication shall be deemed to have been given or made, if by registered post, 48 hours after posting and, if by delivery, at the time of delivery.

21. GOVERNING LAW

This Agreement shall be governed by and construed in all respects in accordance with Indian law and the parties agree to submit to the non-exclusive jurisdiction of the Courts of Mumbai as regards any claim or matter arising in respect of this Agreement.

You will also be governed by all other instructions/rules/policies of the company, which are not specifically mentioned in this letter.

I have read, understood and agree to the terms and conditions set out in this Statement of Terms of Employment. I also confirm that they supersede any other terms and conditions that may have been in force at the time of signing this Statement.



Signature: **Kiran Aher**

Signed on behalf of the Company by:



Signature:

Shailesh Dhuri
Chief Executive Officer
Decimal Point Analytics Private Limited



Signature:

Arun Pratap Singh
Chief People Officer
Decimal Point Analytics Private Limited